

17 April 2023
Arrests, House Searches & Exhibits
Police Interviews - Baby A

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Monday, 17 April 2023
(12.15 pm)

(Delay in proceedings)

(12.31 pm)

(In the absence of the jury)

MR JUSTICE GOSS: Mr Astbury.

MR ASTBURY: My Lord, we're going to deal with searches this afternoon with the exhibits officer. By way of introduction I'm going to read six fairly, I hope, straightforward admissions. They are not yet in writing because they form part of a larger bundle of admissions which haven't been finalised yet. With your Lordship's leave I'll simply read them, the defence are content for me to do that, just before I call DC Johnson.

MR JUSTICE GOSS: Of course, yes. Thank you.

(In the presence of the jury)

MR JUSTICE GOSS: I've received two notes from the jurors about sitting day difficulties. What I am going to do is put those on one side for the moment and review with counsel, first of all, the known days we are not sitting, raise these, and then just come back to you.

I've received these requests, I'll obviously accommodate them, but you'll appreciate we're getting more and more intermittent now and each day we lose just adds more and more time further down the line, which therefore means there's more likely to be further interruptions later on.

But I'll deal with these later and we'll prepare a comprehensive list. It may not be today. We'll sit until 4.20 or thereabouts this afternoon. We'll have perhaps a slightly shorter lunch. Is three-quarters of an hour long enough for a lunch break for you? I don't know if some of you have things to do.

Summary of agreed facts (read)

MR ASTBURY: Thank you, my Lord.

I'm going to begin this afternoon, please, with some agreed facts. They are not yet in writing, they will be very soon, but I read them at this stage because they hopefully set the scene for the evidence we're about to hear.

They read as follows under the heading "Arrests".

Number 26 in our list:

"Lucy Letby was arrested on three occasions during the course of this investigation: (a) at her home address of 41 Westbourne Avenue, Chester, at 06.00 hours on 3 July 2018; (b) at her parents' home address in Hereford at 06.55 hours on 10 June 2019; (c) at her parents' home address in Hereford at 07.25 hours on 10 November 2020."

MR JUSTICE GOSS: You're going to get these in writing.

Make notes by all means, but you'll get them set out to add to the agreed facts.

MR ASTBURY: It's the dates that we want to flag up at this stage, thank you.

Moving on to the heading of "Seizures", in 2018, agreed fact number 27:

"Lucy Letby's home address at 41 Westbourne Avenue, Chester, was lawfully searched between the 3rd and 6 July 2018."

Number 28:

"Lucy Letby's parents' home address of 13 Arran Avenue, Hereford was lawfully searched between the 3rd and 6 July 2018."

Number 29:

"Lucy Letby's place of work at the risk department Mostyn Lodge at the Countess of Chester Hospital was lawfully searched between 10.15 hours and 11.50 hours on 3 July 2018."

Moving on to 2019 and agreed fact number 30:

"Lucy Letby's home address at 41 Westbourne Avenue, Chester was lawfully searched between the 10th and 11 June 2019."

Agreed fact number 31:

"Lucy Letby's parents' home address of 13 Arran Avenue, Hereford was lawfully searched between the 10th and 11 June 2019."

My Lord, I call, please, Colin Johnson.

DC COLIN JOHNSON (sworn)

Examination-in-chief by MR ASTBURY

MR ASTBURY: Could we begin, please, with you introducing yourself?

DC JOHNSON: Yes. Good afternoon, I'm DC Colin Johnson and I am a police officer with Cheshire Police.

ASTBURY: Is it right that during the course of this investigation you had the specific role of exhibits officer?

DC JOHNSON: That is correct.

ASTBURY: Just to deal with that role very briefly, please, so that everybody understands, where exhibits are seized, particularly during the course of a search of, in this case, somebody's home, are they seized by individual officers acting as part of a search team?

DC JOHNSON: Yes, that is correct.

ASTBURY: And part of the search team, is this right, is designated as an exhibits officer?

DC JOHNSON: Yes, despatched to a property.

ASTBURY: Thank you. Not you, in fact, in any of these addresses, as I understand it?

DC JOHNSON: No.

ASTBURY: But the process is then that each exhibit that is seized is then sealed; is that correct?

DC JOHNSON: Yes.

ASTBURY: That is signed with a label by the officer who finds it?

DC JOHNSON: It is.

ASTBURY: It's then passed to the nominated exhibits officer at the scene --

DC JOHNSON: Yes.

ASTBURY: -- who takes responsibility for all exhibits?

DC JOHNSON: At the scene.

ASTBURY: They are then conveyed by that exhibits officer to a secure location at a police station; is that right?

DC JOHNSON: That's right.

ASTBURY: A careful log is completed of all exhibits in a particular case?

DC JOHNSON: It is.

ASTBURY: They are entered on to a computer system?

DC JOHNSON: Yes.

ASTBURY: A full log is maintained?

DC JOHNSON: Yes.

ASTBURY: That log enables an audit trail to be maintained?

DC JOHNSON: Yes.

ASTBURY: That computer system enables you to maintain a record of any exhibit and its location?

DC JOHNSON: It does.

ASTBURY: And they remain under your supervision, if I can put it that way, until the trial begins?

DC JOHNSON: Yes, they're in a locked room, which myself and (inaudible) have access to.

MR JUSTICE GOSS: Sorry, you said things then that I couldn't hear a word of. You said, "In a locked room, which myself", and then something else.

DC JOHNSON: Myself as the exhibits officer has control of that room.

MR JUSTICE GOSS: It's really important that you speak to the people at the back of the jury --

DC JOHNSON: Certainly, sorry.

MR JUSTICE GOSS: -- so that everyone can hear what you're saying.

MR ASTBURY: They're maintained in that locked cupboard but I think since the start of the trial they have been brought to this building; is that right.

DC JOHNSON: They have.

ASTBURY: And you've continued to maintain their propriety whilst you have been in this trial?

DC JOHNSON: Yes, again in the locked room.

ASTBURY: Thank you. I'm going to ask you please some general questions about the searches themselves and then specifically certain exhibits. Is it right that we've heard that searches were carried out at two addresses, certainly on 3 July 2018, two domestic addresses?

DC JOHNSON: Yes.

ASTBURY: Also a work location?

DC JOHNSON: Yes.

ASTBURY: And is it right that a considerable number of exhibits were seized during the course of those searches?

DC JOHNSON: They were.

ASTBURY: During the course of the searches, did a crime scene investigator attend?

DC JOHNSON: They did.

ASTBURY: Did they take photographs of both the scene and various exhibits?

DC JOHNSON: They did.

ASTBURY: Did they keep a written record of their conduct at the scene?

DC JOHNSON: They did.

ASTBURY: Thank you. In preparation for today have you put together a file, in effect, of images of both the searches and the exhibits themselves?

DC JOHNSON: I have.

ASTBURY: I'm going to ask you, please, you having done that, to take us through the chronology of this particular aspect of the investigation.

Dealing first with the search at 41 Westbourne Avenue in Chester. That search was commenced under a warrant, and therefore lawful, at 06.05 on 3 July 2018; is that right?

DC JOHNSON: That is right.

ASTBURY: The search team in fact commenced their activities at 08.50; is that right?

DC JOHNSON: Yes.

ASTBURY: And the address was maintained as a scene, so secure, until the searches concluded at 17.30 hours on 6 July 2018?

DC JOHNSON: It was.

ASTBURY: The officer in charge of the search completed a search record; is that correct?

DC JOHNSON: He did.

ASTBURY: Part of which was a diagram of the premises itself with each room being given a particular number; is that correct?

DC JOHNSON: That is correct.

ASTBURY: I'm going to ask Mr Murphy, please, to put image 1 from our file on the screen. We can see there on the left the downstairs of the property; is that correct?

DC JOHNSON: It is correct.

ASTBURY: And on the right-hand side, a representation of the first floor of the property?

DC JOHNSON: Yes.

ASTBURY: With each bedroom designated a specific number?

DC JOHNSON: Yes.

ASTBURY: Thank you.

My Lord and members of the jury, the file that we're going to look at appears on the iPad, so I'm not suggesting anybody goes there now, but it can be found in the post-indictment section under "Additional exhibits". I can take everyone back to that in a moment but that's where it's to be found.

Now, I want to deal, please, first with bedroom 1 as it appears on our plan. I'm going to ask Mr Murphy to put up image number 2 on the screen. Is that an image of bedroom 1 as it was found to be that morning?

DC JOHNSON: It was --

ASTBURY: Thank you.

DC JOHNSON: -- or it is.

ASTBURY: If we can go, please, to image 3. That's the other end of the room, same bed, showing the foot of the bed and furniture in the room?

DC JOHNSON: Yes.

ASTBURY: Thank you. I don't want to rush through this if people are looking at the images, but if we move on to image number 4, please. Again, another aspect to the right of the furniture and the foot of the bed and we can see, officer, there if we pause for a moment, a mirror standing alongside the wall; is that right?

DC JOHNSON: That is correct.

ASTBURY: Amongst the other items we can see on the photograph, to the right of the mirror and on the floor is a dark shape; is that correct?

DC JOHNSON: It is.

ASTBURY: Were they in fact two handbags that were located in that particular place?

DC JOHNSON: They are.

ASTBURY: I'm going to ask Mr Murphy to move on to photograph number 5. We can see there that particularly dark shape in a bit more detail to the right of the mirror.

If we then go on to photograph 6, please, we see the two handbags there to the right; is that correct?

DC JOHNSON: It is.

ASTBURY: A smaller dark one and a larger burgundy one.

Thank you, Mr Murphy. So that's the location of the two handbags in the room, to the right of the stand-alone mirror against the wall.

Is it right that during the search of the handbag, an officer by the name of PC Clegg recovered three handwritten notes from the handbag?

DC JOHNSON: He did.

ASTBURY: Thank you. Were they given the exhibit reference NAC-2?

DC JOHNSON: Yes.

ASTBURY: So although more than one piece of paper, collectively one exhibit?

DC JOHNSON: That's correct.

ASTBURY: Presumably because of the location where they were found?

DC JOHNSON: Yes.

ASTBURY: Thank you. You, I think, have provided us with images of those handwritten notes. We'll come to the notes themselves in a moment, but perhaps if we have a look at the images first, please. Photograph number 7, Mr Murphy. They are the three handwritten notes in one image laid out; is that right?

DC JOHNSON: It is.

ASTBURY: If we go to the next photograph, please. That's a close-up of the yellow Post-it that we saw amongst the three pieces of paper.

Go to the next image, please. That's the other side of the same Post-it; is that right?

DC JOHNSON: It is, it is.

ASTBURY: Hence there being two photographs of them laid out because they're turned over?

DC JOHNSON: Yes, there was writing found on the rear.

ASTBURY: Thank you. That was my mistake.

Then if we move on again, please, Mr Murphy.

My Lord, the jury can see those in a moment, the originals, but just so we can orientate.

That's the blue Post-it we saw on the earlier photograph on the handbag; is that correct?

DC JOHNSON: That is correct.

ASTBURY: Thank you. And in the next image, writing again on the back of that Post-it, is that correct, officer?

DC JOHNSON: That is correct.

ASTBURY: Thank you. If we move on again, Mr Murphy. It's a larger piece of paper found within the same handbag.

DC JOHNSON: It was.

ASTBURY: The next image, please. Same piece of paper, reverse side again?

DC JOHNSON: It is.

ASTBURY: Thank you. You helpfully told us that that was given the collective exhibit reference NAC-2.

DC JOHNSON: It was.

ASTBURY: Do you have, please, that exhibit to hand?

DC JOHNSON: I do.

ASTBURY: Thank you. Is this an example of the type of evidence bag that would have been used at the scene itself?

DC JOHNSON: It is. It's a standard-issue bag, depending on the size of the exhibit that's required to go into it, which is obviously sealed and the officers sign the front for continuity.

ASTBURY: All three pieces of paper together in there?

DC JOHNSON: They are.

ASTBURY: I think we probably need to open the bag, please.

Can you identify them formally please as NAC-2?

DC JOHNSON: Certainly.

ASTBURY: Thank you. If you put them back in the bag. Now the bag is opened, I'm going to ask that the jury have a look at those, please. My Lord may want to see those first.

(Pause)

MR JUSTICE GOSS: I've said to you several times now anything that is exhibited is an exhibit in the case and you can look at it any time. If you started trying to read these, you can take a very long time for you individually to look at them, so may I suggest at this stage -- are there going to be any...?

MR ASTBURY: The image that is we have on the screen will be available on the iPad and they can be zoomed in and out.

MR JUSTICE GOSS: We really get the impression of the documents rather than just -- the yellow and blue ones are Post-it notes, obviously.

(Pause)

I'll talk over while this is going on. Just in relation -- are they on the iPad yet or not?

MR ASTBURY: Yes.

MR JUSTICE GOSS: So which baby do we go into to get them?

MR ASTBURY: Go to the list of babies. After [Baby Q] we'll find "Post-indictment" as a separate file.

MR JUSTICE GOSS: So it's in the post-indictment section?

MR ASTBURY: Yes. If one enters that, it's on the additional button to the right, by SoE, and then there's "additional".

MR JUSTICE GOSS: Thank you very much.

(Pause)

MR ASTBURY: My Lord, we've taken, by example, the yellow Post-it note and enlarged it on the screen. Some of the writing is easier to read than others, but there's some of the examples that are contained within.

MR JUSTICE GOSS: Yes.

MR ASTBURY: I'm going to go on, by way of introduction, next then, please, to image 18, Mr Murphy.

That's a diary from 2016, so it's the diary we'll be introducing next, please. By way of introduction, can we go, please, to image number 15.

We've looked already, officer, at the chest of drawers at the foot of the bed. Is it right that the diary we've just looked at was found during the search of the middle set of the chest of drawers that we can see against the wall?

DC JOHNSON: That is correct.

ASTBURY: Thank you. It was PC Clegg again, as I understand it, correct me if I'm wrong, who seized the diary from the top drawer of that middle chest of drawers; is that correct?

DC JOHNSON: That is correct.

ASTBURY: Obviously, the diary contained a number of pages and I think a full PDF copy was made of each and every page; is that correct?

DC JOHNSON: It was.

ASTBURY: I want to just look, please, with you at two of those particular pages. Image 16, please, from that diary.

If we can enlarge it a little bit, please, Mr Murphy, if that's possible, so we can see the dates clearly.

That's April, as we know, of 2016. We can see on 8 April, which was, the jury will recall, the date of birth of [Babies L & M], the twins, we can see an entry "LD" and "twins".

DC JOHNSON: We can.

ASTBURY: If we zoom out and look at Saturday, 9 April, which is a date that features on the indictment. We can see an entry:

"LD (extra) twin resus."

DC JOHNSON: Correct.

ASTBURY: For the sake of completeness, under that particular entry on the same date, "Salsa and book group"; is that correct?

DC JOHNSON: We can.

ASTBURY: Thank you. As I say, all of the pages were imaged and have been provided, but can I take you next to image number 17.

Before we do that, I think the image of the diary on that date should be exhibit 12, that particular page.

It's easier just to exhibit the diary, my Lord, and the image will be there that's relevant. Perhaps if I can scrub that suggestion and come back to it in a moment.

MR JUSTICE GOSS: I think -- otherwise we're going to end up with an awful lot of exhibit numbers for perhaps little purpose.

MR ASTBURY: I agree, thank you.

So looking at this particular date in June of 2016, could I invite, please, Mr Murphy just to look at 23 June 2016, which was a Thursday. We can see, I'll be corrected if I'm wrong, it looks like "LD" again and in brackets a "[redacted]"; is that correct.

DC JOHNSON: Yes, that is correct.

ASTBURY: The jury will recall that was the date upon which, sadly, [Baby O] died.

Then on the 24th, the following day, we can see "LD"

again and "[redacted]", that being the date, I observe, that [Baby P] passed away.

DC JOHNSON: Correct.

ASTBURY: And a reference "A + E", which I think we've also heard a little bit about as well.

If we can zoom out again, please, Mr Murphy.

If we go to the 25th on the top of the next page we can see "LD" and "[redacted]".

DC JOHNSON: We can.

ASTBURY: Thank you. The jury will recall that was the date upon which the Crown allege [Baby Q] was attacked.

So they're two selected pages from the diary. Can I ask, do you have the diary with you now?

DC JOHNSON: I do.

ASTBURY: I'm going to ask you, to save exhibiting it any other way, that we exhibit that as exhibit number 12, please.

(Pause)

If we could go back to image 18 again, please, Mr Murphy.

That's the image we've looked at of the diary already, but I'd like to focus next, please, on the Post-it that we can see on the right on the picture. Is it right that that was found inside the diary?

DC JOHNSON: Yes.

ASTBURY: Again, seized by PC Clegg?

DC JOHNSON: Correct.

ASTBURY: And on this occasion, given its own separate exhibit reference of NAC-10?

DC JOHNSON: It was.

ASTBURY: Thank you. I'm going to ask -- we've already heard about this Post-it note, albeit some time ago. I'm going to ask Mr Murphy to enlarge it, please, if possible, and perhaps look at the top half to begin with.

(Pause)

Officer, are you able to produce, please, the original Post-it taken from the diary?

DC JOHNSON: I can.

ASTBURY: Thank you. You may want to leave it in the bags so it doesn't get lost. That's NAC-10, that's the original, and that will be exhibit 13 for the court record, please.

MR JUSTICE GOSS: Do you want the jury to see this or not?

MR ASTBURY: Very quickly. It's clearer on the screen.

MR JUSTICE GOSS: I was going to say, you won't be able to read it. It's only written on one side and you have it.

Do you want to look at it? No?

MR ASTBURY: Thank you. If we can move on, please, Mr Murphy, to image number 20.

This is another piece of paper that was found inside the diary; is that correct?

DC JOHNSON: It is.

ASTBURY: This is a A4-sized piece of paper. You can see the type of writing on it. Perhaps if Mr Murphy can zoom in on the top portion.

Are you able, please, to produce that particular piece of paper --

DC JOHNSON: I can.

ASTBURY: -- as KLF-4?

Perhaps if we pause while everyone has a look at the document.

MR JUSTICE GOSS: That's one side of it, but there's another side.

MR ASTBURY: Yes.

(Pause)

If I could ask Mr Murphy to scroll down to the next part.

We have both sides, my Lord, one of each.

(Pause)

Thank you. If we move down, Mr Murphy, please.

(Pause)

There's a crossed-out box, which might not be as clear. I'm going to ask to zoom in on that, please, to the left of the page.

(Pause)

Next page, please.

(Pause)

Next, please, Mr Murphy, to image 22.

For the record, that's an image of what appears to be an Ibiza-emblazoned bag for life.

DC JOHNSON: That is correct.

ASTBURY: Thank you. Where, please, was that recovered in the bedroom?

DC JOHNSON: If I refer to my statement...

ASTBURY: Yes, I'm sure -- thank you. Your statement indicates it was underneath the bed in bedroom 1.

DC JOHNSON: Yes, that is correct, from memory.

ASTBURY: Is there a photograph of the bag in situ in that location?

DC JOHNSON: Unfortunately not, there appears not to be.

ASTBURY: But is there in fact, from the CSI, a photograph of the contents of this particular bag?

DC JOHNSON: There is.

ASTBURY: Could we move to image 23, please? This, I think, is the image you are referring to.

DC JOHNSON: It is.

ASTBURY: Is it the case, as you understand it to be, the bag has been emptied and the documents within have been laid out on the bed?

DC JOHNSON: It appears to be that way from the photos.

ASTBURY: If we can zoom in a little bit, there's a badge also towards the centre of the right of the screen. Just to be clear, because these images are being put on the screen in a public court, the names of non-indictment babies have been edited?

DC JOHNSON: They have.

ASTBURY: Thank you. That's why we've got the black bar on --

DC JOHNSON: That is correct, to remove their name, conceal their name.

ASTBURY: The bag, I think, was found by a PC Barlow; is that right?

DC JOHNSON: That is correct.

ASTBURY: PC Barlow exhibited the contents of that bag as PMB-4; is that correct?

DC JOHNSON: That is correct.

ASTBURY: Thank you. We'll look at PMB-4 in a moment, but is it right that the documentation in PMB-4, the earliest date is 23 June 2016?

DC JOHNSON: Correct.

ASTBURY: The jury have heard that in fact the defendant returned from Ibiza on or around 22 June 2016, so all paperwork post-dates that date in the bag; is that right?

DC JOHNSON: It does.

ASTBURY: In fact, by 28 June, that's the last of the documents in that bag?

DC JOHNSON: That is correct.

ASTBURY: Right. Now, I'd like, please, for you to, in a moment, exhibit formally the contents of the bag. Before we do, we have images of the relevant documents inside.

Image 24, please, Mr Murphy. This is what we've heard referred to as a handover sheet; is that correct?

DC JOHNSON: That's correct.

ASTBURY: We can see the date on the top, which is Thursday, 23 June.

DC JOHNSON: We can.

ASTBURY: Again, for the reasons we've just touched on, the names of babies who are not named on this indictment have been blanked out for the public court; is that right?

DC JOHNSON: That is correct.

ASTBURY: Thank you. But here we can see, and I think this is consistent throughout, where a handover sheet relates to a date where the Crown allege a specific event, you've very helpfully put the initials back in so anybody who wants to cross-reference the initials with our NNU plans can do so if they wish?

DC JOHNSON: We have.

ASTBURY: Thank you. So we can see on 23 June that this is a handover sheet that names "Male [Surname of Baby Q]", at that stage, "recently born". Then if we go down to nursery 2, we can see the names of both [Baby P], as he then was, and [Baby O].

DC JOHNSON: We can.

ASTBURY: Thank you. If we scroll up for the sake of completeness, please. That's, as far as date is concerned, the first document contained within the Ibiza bag?

DC JOHNSON: Yes.

ASTBURY: Thank you. Go to the next image, please. This is a document with medical information relating, on the bottom left, to [Baby O]; is that right?

DC JOHNSON: It is.

ASTBURY: And another baby to the right-hand side?

DC JOHNSON: It is. There is further information at the top.

ASTBURY: Thank you. [Baby P] is there as well on the top left?

DC JOHNSON: Correct.

ASTBURY: It's been blanked out a little bit with the copying.

DC JOHNSON: Yes.

ASTBURY: I'm going to ask you to take out PMB-4 from your exhibits, please. I won't circulate them but I want you to confirm whether this is a separate piece of paper or whether it's the back of the handover sheet. Am I right that that's the back of the handover sheet we just looked at?

DC JOHNSON: That's correct, it's one piece of paper, but with handwriting on the rear.

ASTBURY: Thank you. Put that to one side for a moment. We'll go to the next image, which is a handover sheet for the following day, 24 June 2016.

DC JOHNSON: That is correct.

ASTBURY: Again, you can see on the top half, please, Mr Murphy, the name of [Baby Q] and the names further down of both [Baby O] and [Baby P].

DC JOHNSON: We can.

ASTBURY: Thank you. We can see the name Lucy -- we could see it in the last one, I'm sorry for not highlighting it -- indicating it was a shift upon which Lucy Letby was on duty and allocated the relevant baby?

DC JOHNSON: That is correct.

ASTBURY: Thank you. Move down the form, please. We can see there's further information for other babies.

DC JOHNSON: There is.

ASTBURY: And I think the jury will have seen this already, but if we just look at the bottom of the form, please, it contains some more information, which includes a mention of [Baby N].

DC JOHNSON: It does.

ASTBURY: If we can go on to the next image, please, Mr Murphy.

Zoom in a little, please. We can see on the right a reference to [Baby P] and notes. Again, can you confirm for me, this is on the back of the handover sheet that we've just been looking at?

DC JOHNSON: Yes, and obviously again it's an A4 piece of paper, typed on the front with writing on the rear.

ASTBURY: Although the name at the top left has been blanked out, it seems to say "trip 3" alongside it; is that right?

DC JOHNSON: It does, yes.

ASTBURY: Thank you. Next image, please, Mr Murphy.

We see here the handover sheet for 25 June, Saturday, 25 June 2016, about which we've heard evidence, and for reasons the jury will understand, only [Baby Q] is named on that particular document.

DC JOHNSON: That is correct.

ASTBURY: Again if we scroll down to look at the rest of the document, we can see Lucy Letby's name in the left-hand column, shift leader at the top Minna, presumably Lappalainen.

DC JOHNSON: We can.

ASTBURY: And further down, please, other babies on the unit at that time?

DC JOHNSON: They are.

ASTBURY: And again, another mention of [Baby N] in the lower portion?

DC JOHNSON: Correct.

ASTBURY: Thank you. The next page, please, Mr Murphy.

Am I right this is on the back of that handover sheet, so it is a photograph of the back of the handover sheet?

DC JOHNSON: Yes. As we've seen before, typed on the front but with handwritten notes on the rear.

ASTBURY: Thank you. We can see on the rear some notes, including those for [Baby Q] on the right-hand side of the page?

DC JOHNSON: That is correct.

ASTBURY: If we go on, please, to the next page, Mr Murphy.

We can see a handover sheet for 28 June 2016.

DC JOHNSON: That is correct.

ASTBURY: Not an indictment date, so no initials necessary there, but we can see, allocated to Caroline B, [Baby Q]?

DC JOHNSON: Correct.

ASTBURY: We can see babies allocated to Lucy Letby below.

Of course, the blanking-out has been done after the seizing of the exhibit.

DC JOHNSON: Yes.

ASTBURY: Thank you. That bundle, if I put it that way, comprises exhibit PMB-4; is that right?

DC JOHNSON: It does.

ASTBURY: Any other papers there within PMB-4 that have not been imaged?

DC JOHNSON: Yes. These haven't been imaged in -- I'd need to check, but they are handwritten notes that don't appear to have indictment and children's names on.

ASTBURY: Dealing with those four pages that we've been through, please -- three pages, I should say --

MR JUSTICE GOSS: Just before we do, the handover sheet for 28 June, no handwriting on the back, I assume, because there's no photograph of it?

MR ASTBURY: I'll ask the officer to check.

DC JOHNSON: No, there is handwriting on the rear of the 28 June.

MR JUSTICE GOSS: So all four have handwriting on the rear?

DC JOHNSON: They do.

MR ASTBURY: We can add that image, my Lord, to the bundle --

MR JUSTICE GOSS: Well...

MR ASTBURY: -- if requested.

DC JOHNSON: Apologies, that is the handwriting on the rear of the 28th.

ASTBURY: That's my fault for not getting to it fast enough. So have a look at that. It doesn't refer to any of the babies on the indictment, although [Baby O] is named on the bottom left; is that right?

DC JOHNSON: Yes.

ASTBURY: Those four pages, could I formally invite you, officer, to exhibit those as PMB-4?

DC JOHNSON: Certainly. They're in date order.

ASTBURY: Thank you. I'm helpfully reminded that takes us to exhibit number 15, please.

My Lord, there's one more slip of paper that was contained and might be considered relevant, so I'm going to ask that to be formally exhibited. It hasn't been edited, I'm not going to put it up on screen. The jury may want to see it, the small slip.

(Pause).

MR JUSTICE GOSS: Is that part of PMB-4 as well then?

MR ASTBURY: Yes, sorry. It's on the iPads, saved within them, but I just don't want to put it up on screen.

MR JUSTICE GOSS: No, right.

It's 1.30 now. Is this a good time for a break for you, 1.30 until 2.15? We'll do that and then we'll do 2.15 until about 4.15. All right? Thank you very much.

You'll remember your obligations and responsibility as jurors. They must be ingrained into your minds by now. Adhere to them, that's the important thing.

(In the absence of the jury)

MR JUSTICE GOSS: I'll tell you what these two latest notes are. We've already got -- so far as this month is concerned, we're not sitting tomorrow, we're not sitting on Friday. I have now had a request for the 24th, which is Monday of next week.

MR ASTBURY: We're not sitting next Wednesday from recollection either.

MR JUSTICE GOSS: And we're not sitting on the Wednesday, the 26th either. Then we've got the bank holidays, the 1st and 8 May, and then there's a request now to have 9 May off, which will extend the bank holiday weekend by another day. These are good reasons and they should be accommodated. So I'll tell the jury that. Then I'm going to prepare a new list that I will run past everyone before I have it copied and distributed, but that won't be available until Wednesday.

MR ASTBURY: Thank you.

MR JUSTICE GOSS: Mr Myers?

MR MYERS: My Lord, not related to that, but just for your Lordship's information, we've provided a short submission today that deals with the question of the calling of Eirian Powell. Your Lordship may not have seen this yet.

MR JUSTICE GOSS: I haven't seen it yet.

MR MYERS: We can deal with it at the close of play, not deal with the submission but deal with the issue. It's the question of a recall of a witness who was due to give evidence. The prosecution, their decision is they would choose not to call her. We would ask for her to be recalled. There's an issue in relation to that.

Mr Johnson King's Counsel will deal with the prosecution position in due course but it's just to identify if for your Lordship. It doesn't have to be dealt with pressingly, but it is something we'll need to deal with at some point.

MR JUSTICE GOSS: We'll deal with it on Wednesday then, is that all right, or later this week?

MR JOHNSON: I don't think it'll take very long at all.

MR JUSTICE GOSS: It's just this afternoon we're under some pressure of time. All right, thank you very much. Can you be ready, please, to continue at 2.15? Thank you very much.

The prison are enquiring about the defendant's presence here tomorrow.

MR MYERS: If that can be accomplished we would wish her to be produced, even if we're not sitting. I should say there was a delay in her being brought to court today with the transport arrangements, so we weren't able to spend the time this morning that we wished to, so we are most anxious that in fact she be produced tomorrow at the normal time for us to meet with, if that can be arranged. We're grateful for that enquiry, my Lord. We really do need to see her. Thank you.

MR JUSTICE GOSS: Thank you very much. I'm sorry you've got such a short break.

(1.36 pm)

(The short adjournment)

(2.15 pm)

(In the presence of the jury)

MR JUSTICE GOSS: Before Mr Astbury resumes, can I just say in relation to those two requests about days when could we not sit for personal reasons, the answer is yes to both of them. On Wednesday I will give you an updated list of days we are not sitting. It's going to mean, for example, on one of the bank holiday weekends there will be another day, it'll extend the bank holiday weekend by a day. But on Wednesday I'll give you the list as to the days we are not sitting. But as you know, as far as this week is concerned, we are not sitting tomorrow and we are not sitting on Friday. But on Wednesday, I'll give you the updated list for all the days thereafter. Okay? Thank you very much.

MR ASTBURY: Thank you, my Lord.

Officer, we were about to move on from PMB-4, which were the notes in the Ibiza bag, before but we do, I have identified an error on my behalf. One of the sheets the jury has seen, if I can just ask you to look at that, is that also from PMB-4?

DC JOHNSON: It is.

ASTBURY: That should have been handed in. It's imaged, my Lord, it should have been part of the exhibits. It's been left in the (overspeaking) --

MR JUSTICE GOSS: I see. It's an omission?

MR ASTBURY: Yes, it's just been left in the bag.

MR JUSTICE GOSS: Could I have a look at it, please?

MR ASTBURY: Could I ask to add it to exhibit number 15, please. They are the notes of [Baby O]'s resuscitation.

MR JUSTICE GOSS: You have seen this before. It's the resuscitation note.

MR ASTBURY: The image is in the presentation that the jury have.

MR JUSTICE GOSS: You have seen it on the pad? Good. No need for you to look at that then. Thank you.

MR ASTBURY: Moving on then, please, from PMB-4, officer, is it right that a second bag for life with a Morrisons logo on was recovered from the bedroom?

DC JOHNSON: It was.

ASTBURY: Could I ask everybody, please, to look at image 25, Mr Murphy.

That's the Morrisons bag that was recovered; is that right?

DC JOHNSON: That's correct.

ASTBURY: Thank you. Within that particular Morrisons bag, is it right that PC Barlow recovered documentation relating to "Twin 2 [Surname of Babies L & M]"?

DC JOHNSON: That's correct.

ASTBURY: Thank you. And specifically, and again the jury have seen these already, I will ask you to formally exhibit them in a moment, but there was a blood gas measurement printout from the machine that we've heard described; is that right?

DC JOHNSON: There was.

ASTBURY: And also there was a paper towel with some handwritten resuscitation notes?

DC JOHNSON: There was.

ASTBURY: I think you have reproduced, helpfully at photograph number 26, that particular exhibit, PMB-8?

DC JOHNSON: That's correct.

ASTBURY: Could I ask you to formally exhibit PMB-8, which will be our exhibit 16, please.

DC JOHNSON: Certainly.

ASTBURY: There's nothing else in the bag other than those two, is there?

DC JOHNSON: I will check just to ensure. Yes, just the two items.

ASTBURY: Thank you. The fact that it's a paper towel, it might be better staying in the bag for some protection. I'm going to suggest that you pass the bag forward this time.

DC JOHNSON: Certainly.

MR ASTBURY: My Lord, again, the jury have seen these during the case.

MR JUSTICE GOSS: Yes, we can see them on the screen.

Unless you want to look at them individually? No.

You'll have to open the bag to --

MR ASTBURY: It's open, sorry. I'm very helpfully informed that's already been exhibited as number 7 in the case, so if we could scrub number 16 for now, please. I'm sure we'll get there in a moment.

Also in that Morrisons bag were, as I understand it, officer, a number of NNU handover sheets similar to those we've seen in the Ibiza bag?

DC JOHNSON: There were.

ASTBURY: In fact, I think, correct me if I'm wrong, please, there were a total of 31 nursing handover sheets in that bag in addition to the documents we've seen referring to [Baby M]?

DC JOHNSON: That is correct.

ASTBURY: Thank you. The entirety of those handover sheets have been scanned and created in a PDF document, but you have helpfully distilled

those that refer to babies that appear on the indictment; is that correct?

DC JOHNSON: I have.

ASTBURY: So we can infer from that that a number of the handover sheets did not refer to babies appearing on the indictment?

DC JOHNSON: That is correct.

ASTBURY: Thank you. I'm going to please ask if we can go through them in order. If we begin with image 28, please.

Perhaps if we just look at the upper half, please, Mr Murphy.

Sorry, my Lord, there is in fact an earlier document which I'd just like to keep in order.

(Pause)

Perhaps without holding things up, is it right that the first in time, as far as the indictment is concerned, was a typed nursing handover sheet within which [Baby B] was named?

DC JOHNSON: That is correct.

ASTBURY: That was dated -- certainly one of them was dated 9 June 2015?

DC JOHNSON: It was.

ASTBURY: And there was a second one relating to [Baby B], dated 27 June 2015; is that right?

DC JOHNSON: It was.

ASTBURY: Thank you. Hopefully we can find the image, but if we move on, we can go back to that if necessary.

We can see on our next image on the screen a typed nursing handover sheet relating both to [Baby E] and [Baby F]; is that correct?

DC JOHNSON: That is correct.

ASTBURY: Thank you. That one is dated 31 July 2015?

DC JOHNSON: It is.

ASTBURY: Moving on to the next image, please, Mr Murphy. It should be dated 17 August.

We can see on that date, 17 August 2015, a handover sheet, including the name of [Baby G]?

DC JOHNSON: Yes.

ASTBURY: [Baby G] as she is in the indictment. Was there also a handover sheet with [Baby G]'s name on dated 23 October 2015?

DC JOHNSON: There was.

ASTBURY: Can we have that image, please, Mr Murphy.

Next in date order, please, we have typed nursing handover sheets which are dated 23 September 2015.

We can see again [Baby G] named on that particular sheet together with [Baby H]?

DC JOHNSON: We can.

ASTBURY: And with their respective designated nurses alongside?

DC JOHNSON: That is correct.

ASTBURY: The next date dealing with these multiple babies is 24 September, please. Again, we can see [Baby H], second name down, and [Baby G] underneath the heading of "Nursery 2"?

DC JOHNSON: We can.

ASTBURY: Next could I ask Mr Murphy to go to 25 September 2015.

Again, we can see [Baby H], the first name on the list, and [Baby G], the fourth baby down on the left?

DC JOHNSON: That is correct.

ASTBURY: 26 September, please, Mr Murphy. As this is a date that appears on the indictment by way of an allegation, officer, it's one of those where you've added the initials for cross-reference purposes?

DC JOHNSON: We have.

ASTBURY: Thank you.

DC JOHNSON: And amended the names.

ASTBURY: Thank you. And we can see again [Baby H] at the top of the column on the left. [Baby G], the third baby down from the top. And a little further down we can see [Baby I] listed on the same date; is that correct?

DC JOHNSON: That is correct.

ASTBURY: Thank you. Moving on from 26 September, the next image, please, Mr Murphy, should be 2 October 2015.

Again, we can see three names on that particular sheet: [Baby H], [Baby G] and [Baby I].

DC JOHNSON: That is correct.

ASTBURY: I think, as it happens, the next page should show some handwritten notes, image 32 according to my list. We've seen an example of this already. This is written, is it not, on the back of a handover sheet?

DC JOHNSON: It is.

ASTBURY: It's written on the back of the handover sheet that we've already looked at, 23 September, with [Baby H]'s name on the front; is that correct?

DC JOHNSON: Yes, that is correct.

ASTBURY: This will be obvious from the originals, but it's just (inaudible: distorted) the images appear?

DC JOHNSON: Yes.

ASTBURY: If we go next, please, to image 33. It should be a series of handover sheets bearing the name of [Baby J]. We can see it's on 10 November 2015.

DC JOHNSON: That's correct.

ASTBURY: Next, please, in relation to [Baby J] is, I think, 11 December 2015. In fact, 11 November, I apologise.

We see [Baby J] on the left-hand side again there?

DC JOHNSON: And again that is correct.

ASTBURY: Thank you. I think one more in respect of [Baby J], dated 17 December. Again, bearing [Baby J]'s name.

DC JOHNSON: That is correct.

ASTBURY: Thank you. Move on to the next image, please, Mr Murphy, image 34. We should have nursing handover sheets which relate to the twins, [Baby L] and [Baby M].

It's on 24 April 2016 and we can see both boys allocated to Lucy Letby in the left-hand columns.

DC JOHNSON: That is correct.

ASTBURY: The next handover sheet, I think, should be dated 3 May, please. In fact, there's some handwriting on the back of that particular sheet.

MR JUSTICE GOSS: The 24 April one?

MR ASTBURY: Yes.

MR JUSTICE GOSS: Right.

MR ASTBURY: I ask the officer to confirm that.

DC JOHNSON: There is.

ASTBURY: Thank you. Certainly the names of [Baby L] and [Baby M] appear in the original document on 3 May.

DC JOHNSON: They do.

ASTBURY: Moving on, please, to image 35 and nursing handover sheets relating to [Baby N], dated 10 June 2016.

The next, dated 14 June 2016, please. We just see [Baby N]'s name again there.

DC JOHNSON: That is correct.

ASTBURY: His surname, I should say.

Just to remind the jury there -- and there's writing on the back of that, I apologise.

At our request you have separated handover sheets that refer to indictment babies from those of the non-indictment babies. I'm going to ask you simply, please, to exhibit those that refer to indictment babies.

DC JOHNSON: Certainly. That is correct too.

ASTBURY: Thank you. They're just the ones we've been through on the images?

DC JOHNSON: They are.

ASTBURY: We didn't have the image, but is [Baby B] on the front of that one?

DC JOHNSON: It certainly is, yes, and 7 June.

ASTBURY: Could I ask you, please, to formally exhibit those selected handover sheets from PMB-9 as our exhibit 16 this time?

DC JOHNSON: Certainly. They are in date order.

ASTBURY: Thank you.

MR JUSTICE GOSS: 17, I think.

MR ASTBURY: I think we duplicated 16 on the last occasion, my Lord. Sorry, 17 of them, yes. Right.

MR JUSTICE GOSS: 17 of the 31 in the Morrisons bag?

MR ASTBURY: As exhibit 16. Sorry, my mistake.

MR JUSTICE GOSS: Your tablet's frozen, has it?

(Pause)

MR ASTBURY: Mr Murphy helpfully tells me he has [Baby B] available, so could we look at that, for the sake of completeness, please, and the two dates for [Baby B]?

9 June, officer, with the initials added for the NNU review if required.

DC JOHNSON: Yes.

ASTBURY: Thank you. The second one, please, Mr Murphy. That's dated some weeks later on 27 June 2015; is that right?

DC JOHNSON: It is.

ASTBURY: We can see [Baby B] about halfway down the page that we have. Thank you.

So just to confirm those numbers again, a total of 31 handover sheets in the bag?

DC JOHNSON: Yes.

ASTBURY: We've seen 17 of them, which refer to indictment babies?

DC JOHNSON: Yes.

ASTBURY: And of those 17, there are 13 of our babies named?

DC JOHNSON: Correct.

ASTBURY: Is that correct?

DC JOHNSON: Yes.

ASTBURY: So not all, but 13 of them?

DC JOHNSON: That is correct.

ASTBURY: Thank you.

Everything we've been through so far seized in bedroom 1?

DC JOHNSON: Yes.

ASTBURY: Could we move, please, on to bedroom 3? I'm going to ask Mr Murphy to go to our next image, which is through the doorway of bedroom 3. The significance of the corner may become apparent in a moment. If we can go to the next image, please. It's another image within bedroom 3.

Next, please. We can see the door frame in the bottom left. So that's effectively alongside the door.

If we can go to the next image, please, that's looking back towards the entrance; is that right?

DC JOHNSON: That is correct.

ASTBURY: Thank you. I'd like to move, please, on to photograph number 40. Image 40. We saw in the first of those pictures of the bedroom the cardboard box and the plastic boxes underneath. Can you tell me, please, what's photographed in the corner behind the cardboard box as we look?

DC JOHNSON: Behind the cardboard box is a black shredder, paper shredder.

ASTBURY: Thank you. At the time was that shredder seized?

DC JOHNSON: It wasn't.

ASTBURY: During the course of the search was any shredded paper identified?

DC JOHNSON: It was.

ASTBURY: If we can move on, please, to photograph 41. Does that represent the sum of the shredded paper?

DC JOHNSON: It was. Obviously it wasn't recovered like that, it's been laid out by the searching officer just for identification purposes.

ASTBURY: I'm going to see how closely we can zoom in on some of that shredding, please. A challenge for Mr Murphy.

Not entirely clear there, but have you been able to zoom in on your laptop in a more clear fashion?

DC JOHNSON: I have, if I can assist.

ASTBURY: Please.

DC JOHNSON: It appears to be bank statements, a Visa bill statement in my opinion.

MR JUSTICE GOSS: Sorry, bank statements?

DC JOHNSON: A Visa bill statement.

MR JUSTICE GOSS: Bank or Visa?

DC JOHNSON: I would lean to Visa.

MR ASTBURY: Thank you. So I'm going to move on, please, from the search of 41 Westbourne Road on the 3rd to 6 July 2018 to the search that took place at Ms Letby's parents' home on 3 July. If we could go, please, to 42 as our next slide.

Rather than the electronic plan we saw in respect of Westbourne Road, is the plan that was prepared by the officers who attended Arran Avenue?

DC JOHNSON: Yes, the attending officer will do a diagram sketch of the property to indicate where they're searching and what name is allocated.

ASTBURY: Thank you. If we look to the right-hand side we can see that's the upstairs part of the house --

DC JOHNSON: Yes.

ASTBURY: -- with bedrooms 1, 2 and 3 identified?

DC JOHNSON: Yes.

ASTBURY: What's the significance of the handwritten numbers, please?

DC JOHNSON: Whether the searching officer would then say, although it's bedrooms 1, 2, 3, he will have numbered each room himself starting at 1, to try and avoid confusion.

ASTBURY: All right. I think our next image is based on the original plan and is described as bedroom 2; is that right?

DC JOHNSON: It is.

ASTBURY: We can look at that image, please, of bedroom 2. Again, there are a series of images so the jury have an impression of the entire room. If we could go through those, please, Mr Murphy.

Sorry, just go back one. Just to explain, I think there were some photographs on the wall, which had been edited?

DC JOHNSON: There were, yes --

ASTBURY: Thank you.

DC JOHNSON: -- and redacted.

ASTBURY: That's obviously the wardrobes at the foot of the bed.

Some more photographs, but again edited for the sake of privacy.

Pausing there, that's one of the wardrobes that we saw at the foot of the bed; is that correct?

DC JOHNSON: It is.

ASTBURY: I would like, please, just to ask you about the items shown in the top left of the photograph. I don't know whether Mr Murphy can assist us again. That's a box marked with an Asda five-sheet strip-cut paper shredder; is that correct?

DC JOHNSON: It is.

ASTBURY: Thank you. Are you aware whether there was a shredder in the box?

DC JOHNSON: There was no shredder in the box.

ASTBURY: Are you aware what was in the box?

DC JOHNSON: I believe paperwork.

ASTBURY: Okay. Were they more handover sheets?

DC JOHNSON: They were.

ASTBURY: Were there in fact a total of five handover sheets in the box?

DC JOHNSON: That is correct.

ASTBURY: Not related to this indictment?

DC JOHNSON: Correct.

ASTBURY: We see some handwriting on the box as well; do you agree?

DC JOHNSON: Yes, I can see that too.

ASTBURY: What do you suggest that says?

DC JOHNSON: It appears to say the word "keep".

ASTBURY: Thank you.

MR JUSTICE GOSS: Can I just be clear: did the box only contain those five handover sheets and nothing else?

MR ASTBURY: Is that right, officer?

DC JOHNSON: As far as I'm aware.

ASTBURY: You've taken your information from the (overspeaking) --

DC JOHNSON: The search records and the (overspeaking) --

MR JUSTICE GOSS: And that's all that's listed in the search record?

DC JOHNSON: Yes.

MR ASTBURY: Thank you, my Lord.

The third location that we are aware of insofar as searches in July 2018 was Ms Letby's work address; is that right?

DC JOHNSON: That is correct.

ASTBURY: And just to remind everybody, that workspace was searched between 10.15 in the morning and 11.50 in the morning on 3 July; is that right?

DC JOHNSON: That is correct.

ASTBURY: I think a blue folder of papers was recovered from the desk; is that correct?

DC JOHNSON: They were.

ASTBURY: Thank you. That was given a reference ELM-4; is that correct?

DC JOHNSON: It was.

ASTBURY: That contained various items of paperwork, but produced for us in image 48, please, is a document which perhaps again, if I can prevail upon Mr Murphy to enlarge.

Thank you. And the lower part, please.

Just in case anybody missed it, there are dates on that document for September and August of 2017.

DC JOHNSON: There are.

ASTBURY: Thank you. We have an image -- do we have both sides?

Thank you. Again if we can look a little closer.

(Pause)

If we move on to the lower half, thank you, Mr Murphy.

May I ask you, please, officer to formally exhibit that piece of paper, taken from ELM-4, as our exhibit 17?

DC JOHNSON: Certainly.

ASTBURY: Thank you.

(Pause)

That concludes the exhibits in respect of July of 2018. We heard earlier today that Ms Letby was rearrested in June of 2019. Image 49, I think, shows again the same layout of the house, just for reference purposes, Mr Murphy.

So new date, same plan?

DC JOHNSON: That is correct.

ASTBURY: Thank you. I want to move on, please, to the search of bedroom 3 again. The next photo should be number 50, Mr Murphy.

(Pause)

If there's an issue with that image, we can return to it. There we have it, thank you.

Still in place in the corner of the room, we can see the black shredder on the right-hand side?

DC JOHNSON: We can.

ASTBURY: Thank you. The garage was searched, is that correct, on that date?

DC JOHNSON: That is correct.

ASTBURY: Could we go to photograph 51 for the image of the garage, please.

Is that a black bin liner under the work surface to the right-hand side?

DC JOHNSON: It is.

ASTBURY: Thank you. If we can move to the next picture, please.

Another black bin bag against the wall --

DC JOHNSON: It is.

ASTBURY: -- behind the green crate?

DC JOHNSON: Correct.

ASTBURY: And within that bin bag was a further note seized?

DC JOHNSON: It was.

ASTBURY: That was, I think, PC Barlow again, and on this occasion given the reference PMB-32?

DC JOHNSON: That's correct.

ASTBURY: If we could look at the image, please, Mr Murphy, of PMB-32. That's a close-up of the bin bag in fact.

I think zooming in, it may be that the handwriting would be difficult on this one. But can you confirm that's PMB-32 in situ, please?

DC JOHNSON: I can.

ASTBURY: There we go, Mr Murphy, thank you. If we scroll up to the top perhaps. Then down the page, please.

Thank you.

(Pause)

Move down again, please.

(Pause)

Do you have the original to formally exhibit, please?

DC JOHNSON: I do.

ASTBURY: Thank you. This is PMB-32 and it is our exhibit 18, please.

(Pause)

Was there a further search at the address in Hereford on 10 June 2019?

DC JOHNSON: There was.

ASTBURY: Is it right that a PC Megan Carr, during the course of that search, recovered another six pages of medical notes relating to children unrelated to this trial?

DC JOHNSON: That is correct.

ASTBURY: We dealt with the handover sheets specifically in the Ibiza bag and the Morrisons bag.

DC JOHNSON: We did.

ASTBURY: We've heard something about other handover sheets at the address in Hereford.

DC JOHNSON: Yes.

ASTBURY: Is it right that a total was assessed of handover sheets seized during the course of all searches?

DC JOHNSON: They were.

ASTBURY: Was there a total of 257 nursing handover sheets in total?

DC JOHNSON: Correct.

ASTBURY: Again, just to put it into its proper context, of those 257 a total of 21 involved babies in this trial?

DC JOHNSON: They did.

ASTBURY: I think then, very helpfully, you've given a very detailed breakdown of where each and every one was found; is that correct?

DC JOHNSON: I have.

MR ASTBURY: It's probably not necessary at this stage, but you may be asked some more questions about that. I have no more questions, but if you could wait there, please.

Cross-examination by MR MYERS

MR MYERS: Mr Johnson, I just want to summarise some of the figures that we've just looked at if you could help me with this. Just picking up where we got to then, a total of 257 handover sheets were recovered in the course of the police searches; is that correct?

DC JOHNSON: That is correct.

MYERS: Of those 257, 21 of them relate to babies on this indictment; that's correct, isn't it?

DC JOHNSON: They do.

MYERS: Of that 21, four of them come from the Ibiza bag that was PMB-4 from Ms Letby's home address at 41 Westbourne Road?

DC JOHNSON: Yes.

MYERS: And we've seen those. Seventeen of those 21 came from the Morrisons bag, which is PMB-9, again from Ms Letby's home address?

DC JOHNSON: They did.

MYERS: So that leaves 236 handover sheets that don't relate to babies on the indictment?

DC JOHNSON: Correct.

MYERS: Just with regard to the 17 from the Morrisons bag, just a couple of questions about that to summarise some points. You recovered a total of, is it, 31 handover sheets in addition to those pieces of paper relating to [Baby M]; is that correct?

DC JOHNSON: Yes.

MYERS: Of those 31, you've told us that 17 of them related or had names of babies on this indictment?

DC JOHNSON: Yes.

MYERS: And as we've seen, those names appear alongside other babies who are named on the shifts to which those handover sheets relate?

DC JOHNSON: Correct.

MYERS: And they've been redacted in the interests of confidentiality?

DC JOHNSON: Correct.

MYERS: In fact, let me just correct this. From PMB-9, 13 -- looking across PMB-9 and PMB-4, 13 of the babies named on this indictment feature?

DC JOHNSON: That is correct.

MYERS: So just to hold that detail. Of the ones we've looked at from the two bags, 13 of the babies on this indictment appear on one or other of those handover sheets?

DC JOHNSON: They do.

MYERS: Fourteen of the handover sheets recovered from PMB-9 don't relate to any babies on this indictment?

DC JOHNSON: I believe so.

MYERS: Fourteen of the 31?

DC JOHNSON: Yes.

MYERS: And as it happens, the following babies don't appear on any of these handover sheets -- I'm going to name four of the babies from the indictment. [Baby A]; he doesn't appear?

DC JOHNSON: He doesn't.

MYERS: [Baby C] does not appear?

DC JOHNSON: No.

MYERS: [Baby D] does not appear?

DC JOHNSON: No.

MYERS: And [Baby K] does not appear?

DC JOHNSON: No.

MYERS: Just to confirm, the box in the cupboard at Arran Avenue, which is the address of Ms Letby's parents, did you say that contained five handover sheets in the box?

DC JOHNSON: It did.

MYERS: But none of those related to babies in this indictment?

DC JOHNSON: They don't.

MR MYERS: All right. Thank you, Mr Johnson. That's just what I wanted to summarise.

MR ASTBURY: I have nothing arising. Does my Lord have any questions?

MR JUSTICE GOSS: I don't. Thank you very much. That completes your evidence.

MR ASTBURY: We don't think we'll see DC Johnson again.

MR JUSTICE GOSS: Thank you very much. But no doubt you'll be available if any query arises in relation to this.

DC JOHNSON: Certainly.

(The witness withdrew)

MR ASTBURY: My Lord, that concludes the searches at this stage. We're going to move on to an entirely different topic next. I don't know whether now would be an appropriate time just for a short break while we take stock if that's convenient.

MR JUSTICE GOSS: Are you asking for one?

MR ASTBURY: Yes, please. Sorry for the roundabout way!

MR JUSTICE GOSS: Yes. So there will be a short break. How long do you want, 5, 10 minutes?

MR ASTBURY: No more than 5 minutes.

MR JUSTICE GOSS: This will be the only break this afternoon and then we'll finish, as I say, at about 4.15.

(In the absence of the jury)

MR ASTBURY: Thank you, my Lord. Sorry for not making that clear.

We are ready to move on to the interviews. We have Sergeant Stonier here and we have the first bundle ready. However, simply because of the way the times and dates have fallen, today is the first time we've been able to give the defence the bundle of interviews.

There have been electronic copies around, but caution and experience suggests that it's always worth checking the hard bundle first.

I think we're all conscious that we won't be sitting tomorrow. I'm not making the defence's application for them, but I think they want some time to reflect on the issues if they haven't yet had time to do that.

MR MYERS: Just simply to check the printed copies, that there's been a great deal of time, as your Lordship knows, expended, quite properly, in

reducing these to a fraction of the original size. That's all been agreed. The hard copies are just available now.

Therefore certainly before we embark upon them, we'd be grateful just to look to check that the way they've been printed out, which will have been a large operation, reflects what's been agreed. Only because the room for error exists and it'd be preferable to find out any problem now than part-way through the interviews.

MR JUSTICE GOSS: That's very sensible.

MR MYERS: Thank you.

MR JUSTICE GOSS: And appropriate. Right.

MR ASTBURY: There's also the question of the other admissions regarding the interviews and the like, which we haven't quite finalised, but they can be done later once we have started the interviews. I have only asked for 5 minutes, but I'm in the hands of the defence just so they can check that the hard copies accord with what we anticipate.

MR MYERS: Well, I don't know how long that will take.

I must say it crosses my mind, although I'm aware the court is anxious to press on if it can, whether it wouldn't be better to do that now rather than starting all the interviews at 3.05 today, we're in the court's hands. Otherwise we could start with them first thing on Wednesday morning. I just wonder whether that might be the best use of time now. There is an issue for your Lordship to deal with relating to the witness Eirian Powell which we need to deal with in sufficient time to make arrangements for her to attend.

If your Lordship could give me a moment, I can confirm whether we can deal with the check that we need to perform more rapidly than I suggest.

MR JUSTICE GOSS: Yes. We've got an hour or thereabouts.

I'm not suggesting we need to fill the full hour, but if some time could be -- at least so the jury familiarise themselves with an interview. Even if we do -- I don't know how long the first one is, how many pages it runs to.

MR ASTBURY: 25 pages --

MR JUSTICE GOSS: If we could do 25 pages, that's usually about --

MR MYERS: Perhaps if we could have 10 minutes at least just to confirm the start of these interviews, we'd be grateful for that.

MR JUSTICE GOSS: If you have 10 or 15 minutes, however long you need, and if an error is found then that's it, obviously, because they will have to be re-done and that will be the end of the court sitting today.

MR MYERS: If we could take 15 minutes, maybe 20 -- we'll let your Lordship know -- but just to check that what we're about to embark upon doesn't contain any error in it, then we can make a start and we would be grateful for that.

MR JUSTICE GOSS: We'll just do one, just that first one.

MR MYERS: Thank you.

MR JUSTICE GOSS: There are three of you. Perhaps you needn't be doing it, Mr Myers, but three others could do it.

MR MYERS: We'll check.

MR JUSTICE GOSS: Thank you very much. So a message to the jury then, please. This is going to take a little bit longer. Some documents have to be checked before they can be put in evidence. Apologies, but it'll be about 15 minutes. We'll keep them informed. Thank you very much.

I have just been asked if I'm available to sit tomorrow in relation to this case. It's not come from counsel this, at all?

MR MYERS: No, it hasn't, my Lord.

MR JUSTICE GOSS: I'm not, is the answer. I'm hundreds of miles away.

MR MYERS: We weren't making the request that your Lordship should. There may be crossed wires.

MR JUSTICE GOSS: I think it may be. I think it's because the defendant is to be produced, that may be why.

MR MYERS: I anticipate that's the reason.

MR JUSTICE GOSS: As I think you know, I'm just not available.

MR MYERS: We know that.

MR JUSTICE GOSS: I'll rise and then the work can begin and just let me know. Thank you. What I will do is prepare the list of non-sitting days so that should be available. Whilst you're doing that, I'll do this.

(3.08 pm)

(A short break)

(3.32 pm)

MR MYERS: We're grateful for the time, my Lord. We've been able to check the first of these interviews, so thank you.

MR JUSTICE GOSS: Right. Thank you very much. Well, as I say, Mr Astbury, if we don't finish the first interview by 4.15, we'll have to rise.

MR ASTBURY: Very good.

MR JUSTICE GOSS: Thank you.

(In the presence of the jury)

MR JUSTICE GOSS: Sorry that took longer than I'd been led to believe. Thank you.

MR ASTBURY: My Lord, Danielle Stonier, please.

DS DANIELLE STONIER (sworn)

Examination-in-chief by MR ASTBURY

MR ASTBURY: Could you introduce yourself, please?

STONIER: Yes, I'm Detective Sergeant Danielle Stonier from Cheshire Police.

ASTBURY: Thank you. Sergeant, you were one of the investigation team in the investigation in respect of Lucy Letby?

STONIER: Yes, that's correct.

ASTBURY: And one of your roles was to conduct interviews of Ms Letby?

STONIER: Yes, that's right.

ASTBURY: The jury have heard this morning that Ms Letby was arrested on three separate occasions?

STONIER: Yes, that's correct.

ASTBURY: 2018, 2019 and 2020?

STONIER: Yes.

ASTBURY: Whilst in custody after those arrests she was interviewed by yourself and other officers whilst in the police station; is that right?

STONIER: Yes, she was.

ASTBURY: We'll come to the documents in a minute, but she had, am I correct, her solicitor with her at each and every interview?

STONIER: Yes, she did.

ASTBURY: As was her right?

STONIER: Yes, that's right.

ASTBURY: And you are here to assist us with the interviews.

We'll have a list of all of the interviews in due course, but just to make clear that the exhibit I'm going to go through with you, you're aware, aren't you, is a summary of the interview that took place. All interviews are recorded?

STONIER: Yes, they are.

ASTBURY: They are transcribed in full?

STONIER: Yes, that's right.

ASTBURY: And then a summary is prepared for a jury with the most relevant parts contained without hopefully any repetition or irrelevant material therein?

STONIER: Yes, that's right.

ASTBURY: So we're going to go together, if we may, through the summaries. We'll become familiar with the format, but if we can look first, please, at our page [redacted]. You'll see they're all paginated in the top right-hand corner.

STONIER: Yes.

ASTBURY: These have been prepared, is this right, officer, in baby order?

STONIER: Yes, that's right.

ASTBURY: Would this fairly reflect the process: questions were asked initially on 3 July and in the days afterwards about each baby?

STONIER: Yes, they were.

ASTBURY: So we have the first interview about [Baby A]. Then on the second occasion of arrest there were more questions about [Baby A]. So they've been split into babies rather than dates; is that right?

STONIER: Yes, that's right.

ASTBURY: Thank you. So first of all we're going to begin with [Baby A] and the first interview about [Baby A]. If we look at the very first page of our exhibit --

MR JUSTICE GOSS: Well, the jury don't and can't because they haven't got it.

MR ASTBURY: I'm sorry, I thought -- they're all lined up ready, I do apologise.

(Handed)

There will be two of these folders, my Lord. We're hoping not to add too much paperwork to what's already been created. There will be another at some point.

(Pause)

MR JUSTICE GOSS: You'll see it's marked on the spine, "Interview bundle 1", because there's going to be a second bundle. I think if we go behind the first divider -- and don't, please, go beyond the first divider, don't start trying to read ahead into further interviews, just read the page that we're on during the course of the evidence.

MR ASTBURY: Yes.

Now we all have it, we'll become familiar with the form. This effectively contains the information about the interview on the first page; is that right?

STONIER: Yes, that's right.

ASTBURY: Headed "Record of interview". The name of the person interviewed: Lucy Letby. Place of interview: the custody suite at Chester. Date of the interview: 4 July 2018. The time: 10.23 to 12.04. A reference number. The name of the two officers conducting the interview, not you on this occasion. And also the fact that Ms Letby's solicitor was present.

STONIER: Yes, that's correct.

ASTBURY: In presenting these, they're obviously in a question-and-answer format. I am going to, if I may, play the role of the interviewing officer and deal with the summaries. If I can ask you to assist with Ms Letby's replies, please.

STONIER: Yes, no problem.

ASTBURY: Thank you.

The interview begins with introductions and caution.

The caution is a formal set of words at the outset of an interview; is that correct?

STONIER: Yes, that's correct.

ASTBURY: Can you confirm for me that it is as follows:

"You don't have to say anything but it may harm your defence if you fail to mention when questioned something that you later rely on in court, and anything you do say may be given in evidence"?

STONIER: Yes, that's correct.

ASTBURY: Thank you. The introductions consist of everybody stating their name who's present?

STONIER: Yes.

ASTBURY: And an outline of what's about to take place?

STONIER: Yes.

ASTBURY: Thank you.

Then the first question:

"Do you understand that Lucy"; yes?

STONIER: Yes.

ASTBURY: Lucy Letby then confirmed that she'd received a copy of her notes relating to [Baby A].

Okay. In relation to [Baby A], other than the notes, do you remember [Baby A] and your care of [Baby A], other than the notes you've just gone through?

STONIER: Yes.

ASTBURY: You do. Would you like to tell me exactly, in your own words then, what your involvement was with [Baby A] regarding around the time he collapsed?

STONIER: So I remember I came on duty -- we start our night shift at 7.30 and we have a general handover period which usually lasts until around 8 o'clock. And at that point I went to [Baby A]'s cot side to receive individual handover with the nurse that had been looking after him in the day -- and I believe this was around 8 o'clock and at this point the nurse looking after him was connecting or drawing up some fluids to be connected via a long line that [Baby A] had inserted during the day.

So at this point, whilst we were getting -- sorry, so while at this point, whilst we were getting handover from each other, I checked the fluids with this other nurse and she connected them via the long line and shortly after that is when we noticed that [Baby A] had gone quite pale and mottled in his skin. Dave Harkness, the registrar, was in the nursery at the time and we called Dave over and began initiating airway support because [Baby A] was apnoeic and then we put a crash call out and Dr Jayaram came and then [Baby A] had full resuscitation.

ASTBURY: You came on duty at 7.30?

STONIER: Yes.

ASTBURY: Okay. So what was your -- what were your actions when you came on duty on the ward?

STONIER: So we have a generalised handover to start with all the nursing colleagues that hand over from the day shift to the night shift.

ASTBURY: Okay.

STONIER: And then, I'm not 100% sure of the timing, but I believe I got to [Baby A]'s cot side around 8 o'clock to have individual handover on [Baby A] from the nurse that was caring.

ASTBURY: Do you specifically remember this shift with [Baby A]?

STONIER: Yes.

ASTBURY: Okay. What -- why do you remember that?

STONIER: I remember [Baby A].

ASTBURY: So do you specifically recall going to [Baby A]'s cot side?

STONIER: Yes.

ASTBURY: Okay. Tell us about your observations of [Baby A] at that time.

STONIER: So I remember [Baby A] was on CPAP, which is respiratory support, and I didn't have a lot to do with [Baby A] at that time because when I came to get handover the nurse caring for him was already drawing

up sterile fluids to go through the long line that had just been put in by the doctors, so we went straight to checking the fluids.

ASTBURY: Okay. Tell me about what the support was, the breathing support?

STONIER: [Baby A] was receiving CPAP.

ASTBURY: Okay. And at that point was there anything that alerted you to anything, even though you can't remember which specifically [Baby A] had? Did you notice anything that concerned you with the way he was receiving that treatment?

STONIER: Not with that. The only thing I do remember is that he was a little bit jittery in appearance. He was a bit jittery in his limbs and that can be a sign of low blood sugars, and he was due a blood gas and a blood sugar shortly after I came on shift.

ASTBURY: Okay. So tell me what jittery is?

STONIER: Jittery is sort of when the baby is making sort of involuntary jerking movements, their limbs.

ASTBURY: So it's not in reaction to pain?

STONIER: No.

ASTBURY: No. So it --

STONIER: Jittering is something you recognise as being -- it can be a sign of low blood sugar, it's quite a different movement.

ASTBURY: Okay. Is that common?

STONIER: It is common for preterm babies to be hypoglycaemic, yes.

ASTBURY: And was that --

STONIER: And that's why we were keen to get the fluids connected because we were conscious that he hadn't had fluids via his long line in the UVC at that point.

ASTBURY: Okay. Would the fluids have included something that would aid the jitteriness?

STONIER: Yes.

ASTBURY: Okay. And what was that?

STONIER: I'm not sure without looking which fluids we connected, whether it's 10% glucose or TPN.

ASTBURY: Okay. So tell me who the nurse was that you took over from.

STONIER: Melanie Taylor.

ASTBURY: Okay. What was her hand over to you? This is from memory.

STONIER: I can't remember specific details.

ASTBURY: Okay.

STONIER: But I don't recall there being anything of any due concern.

ASTBURY: Okay.

Then the other officer asks:

"So when you came on duty how was [Baby A] presenting to you initially?"

STONIER: From what I remember he -- I didn't have any concerns other than this jittery movement.

ASTBURY: Okay. Do you remember how long into your shift that he became jittery?

STONIER: No.

ASTBURY: So you said you that checked the fluids with the other nurse. Is that again something that you specifically remember with regards to [Baby A]?

STONIER: I can't remember which fluids, but I know that Mel was there with the fluids when I came to get handover and we made that a priority, to check the fluids and get those set up and running.

ASTBURY: Okay. Again, why was that -- why was that a priority?

STONIER: Because he hadn't had his cannula, his peripheral cannula inserted in the day. He'd had a UVC that they weren't happy to use and he'd had a long line inserted that the doctors had confirmed we could use. So I think he'd gone a few hours without any fluids.

ASTBURY: Okay. Is that normal? Is that a cause for concern?

STONIER: It's not ideal but when you have new babies and it's -- you have -- you can have problems obtaining access to be able to give fluids, yeah.

ASTBURY: Right, okay. But there was nothing that gave you concern apart from the jitteriness --

STONIER: No, not that I remember.

ASTBURY: -- at the point of handover?

STONIER: No.

ASTBURY: Okay. So you said he became pale and mottled. Is that during the handover with Melanie?

STONIER: I think it was after we connected the fluids.

ASTBURY: Okay.

STONIER: He -- he was normal in appearance when we were having handover and once we connected the fluids, it was noted that he -- his colour changed.

ASTBURY: Okay. So with regards, again from memory, yourself and Melanie, did you do that together?

STONIER: I think Mel was drawing up the fluids and Mel was sterile because you have to do it aseptically, connecting fluids, so I believe she was gowned up and setting the fluids up and I checked the fluids with her because two people have to check any bags or any fluids that were running.

ASTBURY: Okay.

STONIER: And then I think, from memory, Mel connected the fluids to the long line.

ASTBURY: Okay. So what --

STONIER: And then we set up the pump together, the infusion pump.

ASTBURY: Okay. So physical interaction at that stage with [Baby A], what exactly did you do --

STONIER: I don't --

ASTBURY: -- in layman's terms?

STONIER: I don't recall having any physical contact with [Baby A] at that point.

ASTBURY: Okay. So when did you have physical contact with [Baby A]; do you recall?

STONIER: No. I think it was when he deteriorated.

ASTBURY: Okay.

And then the other officer:

"Do you remember what you were doing just prior to the deterioration, Lucy, what -- where you were?"

STONIER: I think I was at the bedside checking the equipment. So usually when we have received handover we'll then go through and check all the emergency equipment.

ASTBURY: Right.

STONIER: Check any infusion pumps, any ventilator support, you check all the equipment, check your incubator, those sorts of things.

ASTBURY: And were there any issues with the equipment at that time?

STONIER: No.

ASTBURY: Okay. And that's where you were just before he became unwell?

STONIER: Yes, I think so.

ASTBURY: Was anyone else there with you at the time?

STONIER: So Mel was still in the room and a registrar, Dave Harkness, was in the room with [Baby B].

ASTBURY: Okay. What was Mel doing, do you remember, at the time?

STONIER: No.

ASTBURY: Okay. Were there any other babies?

STONIER: I think she may have been writing her notes, but I -- I'm not 100% sure.

ASTBURY: Right. Were there any other babies in the room at that time?

STONIER: I know [Baby B] was in the room. I'm not sure about any others.

ASTBURY: Right. Who was [Baby B]'s nurse at the time?

STONIER: I think it was Caroline Bennion but again I'm not certain. I know Caroline Bennion was there because she became involved once [Baby A] deteriorated. I'm not sure if she was on the day shift or the night shift.

ASTBURY: And you say Dr Harkness was there?

STONIER: Yes.

ASTBURY: What was he doing then?

STONIER: He was doing something with [Baby B]. I'm not sure. But I just remember him being at her incubator.

ASTBURY: Right. Okay.

Then the officer:

"Okay. So you've done those kind of connections. You didn't have any concerns at that stage. How long between doing those and you noticing [Baby A] becoming pale and mottled?"

STONIER: It was fairly soon. Within minutes, I think.

ASTBURY: 30 minutes, 2 minutes?

STONIER: I don't know. Maybe 5 minutes.

ASTBURY: Okay.

STONIER: Something like that.

ASTBURY: And Melanie had moved on to doing her notes?

STONIER: I think so.

ASTBURY: And you were doing the check of the equipment?

STONIER: Yes.

ASTBURY: Okay. So tell me how you interpret pale first of all in a neonatal baby?

STONIER: It's a loss of colour. Babies are usually quite pink and he'd become more pale, as in almost white.

ASTBURY: Okay. What does that mean to you as a nurse in that field?

STONIER: That there's something wrong.

ASTBURY: Okay. Like what?

STONIER: It could be an infection.

ASTBURY: Okay.

STONIER: Could it be they are hypoglycaemic, that they've had a sudden collapse?

ASTBURY: Okay. And mottled, the same thing, how do you interpret the mottled appearance?

STONIER: So mottled is a bit more of -- almost like a rash appearance, like blotchy red marks on the skin.

ASTBURY: Okay. Is that a reflection of something in your experience?

STONIER: Again, it can be a sign of infection, low blood sugars.

If they're cold they can become mottled. If they've got poor blood gases.

ASTBURY: Okay. And exactly what is mottled?

STONIER: What is a mottled appearance?

ASTBURY: Yes.

STONIER: So when the baby's quite pale and white and they can have sort of red areas on them.

ASTBURY: Red?

STONIER: Yeah, like reddy-purple, yes.

ASTBURY: Okay. Was this specifically with regards to [Baby A], was it localised or was it spread out? Where exactly did the mottling appear?

STONIER: I think it was his hands and feet.

ASTBURY: Okay.

STONIER: And he was centrally pale.

ASTBURY: Okay. So those two together, considering how he presented to you at that time, what were your actions then?

STONIER: So I think I went to him and checked him and found that he was apnoeic and not breathing.

ASTBURY: Okay. So how did you check him, what do you mean by check?

STONIER: I looked to see if he was breathing and if the CPAP mask was in place still and the machine was running.

ASTBURY: And was it?

STONIER: Yes.

ASTBURY: Which machine was running?

STONIER: The CPAP machine.

ASTBURY: Okay, yeah.

STONIER: And then straightaway Dave was in the room, Dave Harkness, and I called him over from what I recall.

ASTBURY: Okay. How did -- did you have to almost stimulate [Baby A] or physically check him?

STONIER: I think so but I can't remember.

ASTBURY: And then Lucy Letby described the initial steps that would usually be taken to stimulate an apnoeic baby.

And the officer asked: Okay, so you say that, you saw he wasn't breathing, that he was apnoeic.

STONIER: Yes.

ASTBURY: So tell me how that presented in [Baby A].

STONIER: How did I know that he was apnoeic?

ASTBURY: Yes.

STONIER: I think I went over and assessed him. He wasn't breathing and I'm not sure what his observations were doing. I can't recall his observations at the time.

ASTBURY: Okay. And then the other officer:

"At that time, was anyone else with you?"

STONIER: Yes, Dave Harkness was on the cot side next to him. I'm sure Mel was in the room and Caroline Bennion.

ASTBURY: So Dave Harkness would have witnessed the apnoea, the breathing had stopped, yeah?

STONIER: I'm not sure that he was looking at [Baby A] at that time, but he was in the room.

ASTBURY: So how did he become aware that [Baby A] was apnoeic?

STONIER: We called him over.

ASTBURY: Okay. Who's we?

STONIER: I'm not sure whether it was myself or Mel or Caroline.

ASTBURY: Okay.

STONIER: I'm not sure who. We were all in the room from what I remember, so I'm not sure which of us -- who I called for first -- or how it -- we were all in close proximity.

ASTBURY: Was he attached to any monitors?

STONIER: Yes, he would have been attached to a Philips monitor.

ASTBURY: Okay. So in [Baby A]'s case in particular, was the monitor -- did the monitor go off?

STONIER: I can't remember --

ASTBURY: Right.

STONIER: -- specifically.

ASTBURY: Was it the monitors that attracted you to [Baby A] being apnoeic or was it your visual observations?

STONIER: I can't recall but I would assume it would be the monitor.

ASTBURY: Okay. So had you moved away from [Baby A] after you'd done the handover?

STONIER: I can't specifically -- I don't know.

ASTBURY: Right. Because you said you were checking the --

STONIER: If the equipment is adjacent to the cot side though --

ASTBURY: Yeah, so were you during that period of handover to you seeing/making these observations of the collapse?

Sorry. I'm not sure that makes sense.

Were you with [Baby A] throughout that period?

STONIER: I believe I was checking the equipment, yes, at his cot side and his charts.

ASTBURY: When you talk about this mottled rash, can you give us any further description of how it showed, its shape?

STONIER: I think from memory it was more on the side that had his line in.

ASTBURY: Okay. Which side was that, do you remember?

STONIER: I think it was his left.

ASTBURY: Okay. And you described it as a red/purple colour.

Can you sort of help us with any comparisons with anything colour-wise, the way it showed? Was there any -- was it bright red, was it dark red?

STONIER: I think it was more pale than the mottling, than the little areas of the mottling.

ASTBURY: Okay.

STONIER: But predominantly it was paleness.

ASTBURY: Did anyone else see that mottling on [Baby A]?

STONIER: Yes, I think it was still there when I called Dave and Caroline and the other nursing staff came in.

ASTBURY: Did they say anything about it to you?

STONIER: Yes, we were advised to stop the fluids on the long line straightaway.

ASTBURY: Did they say what they thought it was?

STONIER: I think Dave mentioned that it could be potentially an issue with the line, so to stop the fluids.

ASTBURY: Okay.

The other officer:

"How does a long line cause mottling?"

STONIER: If a long line wasn't in the correct position you were running fluids and it was going outside of the bloodstream into the tissues then it would cause circulatory problems to --

ASTBURY: Okay, right?

STONIER: -- that limb or that area.

ASTBURY: Okay. Who had inserted the long line?

STONIER: I think it was Dave Harkness. Doctors insert it, so it would have been a member of the medical team.

ASTBURY: Okay. And that was prior to you coming on duty, I think you said, didn't you?

STONIER: Yes.

ASTBURY: Because -- so that was already in situ?

STONIER: Yes.

ASTBURY: And Lucy Letby was then asked to explain some of the entries from the notes which with she'd been provided.

The officer says: Okay at 20.05 you put, "10% glucose commenced via long line with SN Taylor as agreed by Registrar Harkness, who was present."

My Lord, that's a reference to tile 175 on the [Baby A] interview. I don't know whether it would help to have that up now so the jury know what's being discussed. 175.

The question is: What was this for?

STONIER: All the babies that aren't being fed need to have some fluids running to maintain the blood sugars, so 10% glucose is the standard formula we would give for TPN.

So [Baby A] was commenced on, obviously, 10% glucose.

ASTBURY: Okay. And if we move along there I think we've covered -- you noted him to be jittery, that he was due to have a blood gas and blood sugar taken. I think you mentioned that to us, didn't you? And you went through the process of that. How was [Baby A] handling at that time?

STONIER: I don't recall handling [Baby A].

ASTBURY: Right. At all that day?

STONIER: No.

ASTBURY: Okay. Then I think you've put at 20.20, "[Baby A]'s hands and feet needed to be wiped. Centrally pale, poor perfusion, [Baby A] became apnoeic."

This is tile 179. Thank you.

So you put there that [Baby A] became apnoeic at the time, his hands and feet were noticeably white. So is that -- was that the correct sort of way it sort of displayed: his hands and feet were white, you saw them being white and then he became apnoeic at the same time or was that afterwards?

STONIER: I can't recall specifically.

ASTBURY: But was anyone else present when you saw those?

STONIER: There were other staff present in the nursery, yes.

ASTBURY: Then she went on --

STONIER: I remember raising about them being white. That's when I was advised to stop the fluids.

ASTBURY: At that time?

STONIER: Yes, I believe when I was -- called for help, yes.

ASTBURY: Okay. So where you've put "centrally pale and perfusion", the poor perfusion refers to how you described around the --

STONIER: The limbs, yes.

ASTBURY: The extremities, okay?

STONIER: Yes.

ASTBURY: Okay. And that could be caused [by a] problem with the long line?

STONIER: Yes.

ASTBURY: So that's the same thing?

STONIER: Yes.

ASTBURY: Okay.

Then the other officer:

"What do you mean by perfusion then? What's perfusion?"

STONIER: The circulation.

ASTBURY: Okay. Was there a reason why it was particularly poor with [Baby A] --

STONIER: No.

ASTBURY: -- in your opinion?

STONIER: No.

ASTBURY: Okay. Then you've got Registrar Harkness in the nursery and assistance called for, so I take it he was there pretty straightaway, was he?

STONIER: Yes.

ASTBURY: And what was his initial advice to you?

STONIER: To stop the fluids.

ASTBURY: And then shortly afterwards -- afterwards, "No heart rate was detected and full resuscitation commenced as per the medical notes". Do you want to just go through that process of the resuscitation for us then? Your, involvement?

And then:

"Specifically to [Baby A], to [Baby A]."

STONIER: Okay. I can't remember specifically my role with [Baby A].

ASTBURY: Right. Is there anything at all that you do remember about the resuscitation?

STONIER: No.

ASTBURY: Then sadly, [Baby A] passed away at 20.58 hours and was given to the parents to cuddle. How were you feeling about that?

STONIER: It was awful, really.

ASTBURY: Can you explain what was going through your mind?

STONIER: Just how quickly it had all happened and I didn't have a relationship with the parents or anything and obviously they came and [Baby B] was in the room at the time and we were conscious that we were split between two babies and [Baby B] was present when this was all happening as well.

ASTBURY: Do you know who gave -- gave him to the parents, who passed [Baby A]?

STONIER: I think it was myself.

ASTBURY: You think or you remember?

STONIER: No, I can't remember specifically for definite.

ASTBURY: What made you think it might have been you?

STONIER: Usually it's the member of staff that has cared for the baby that's assigned to look after the baby that would have that role.

ASTBURY: It must be a very difficult time for you.

STONIER: Yes.

ASTBURY: How do you sort of deal with that? What's your sort of coping mechanism for that?

STONIER: I think we just all as a team sort of supported one another with it.

ASTBURY: Do you remember any sort of debriefs or chats with --

STONIER: There was a debrief.

ASTBURY: Debrief?

STONIER: A few days later, I think. I'm not sure of the exact date but there was one held formally.

ASTBURY: You remember that, do you?

STONIER: Yes.

ASTBURY: Who was involved with that? Who was present?

STONIER: I think it was led by Dr Jayaram. I can't remember any of the specific details about it.

ASTBURY: Was there any particular outcome from it at all?

STONIER: No, I believe there was some mention that mum had various health issues that were looking into, whether they could have affected [Baby A] and [Baby B], but I don't recall anything else.

ASTBURY: What about offloading to friends or family, you know, after your shift? Did you do any of that?

STONIER: I can't remember specifically but I would have told my parents and my friends, yes.

ASTBURY: But you don't know specifically?

STONIER: No.

ASTBURY: Okay.

Then presumably this is to the other officer: Is there anything you want to ask?

The officer says:

"Up to [Baby A] had you had experience of babies passing away professionally prior to his death?"

STONIER: Yes.

ASTBURY: Okay. What kind of occasions were they, in what circumstances?

STONIER: I'd seen babies pass away at Liverpool Women's when I was doing my training there, very pre-term babies.

ASTBURY: Okay.

STONIER: And I -- we lost a 23-week baby on the unit when I first started, so I'd seen that baby.

ASTBURY: Okay. Is there sometimes an element of a death being expected within the neonatal unit?

STONIER: Sometimes, yes --

ASTBURY: Okay.

STONIER: -- depending on the baby's condition and gestation and things, yes.

ASTBURY: With regards to [Baby A], was his death anticipated or expected?

STONIER: No. My concern at the time was whether there was -- had been any issue with the long line because it was sort of in a few minutes after we connected the fluids that he seemed to deteriorate, so I think my concern was that there was an issue either with the line or the fluids that we'd connected.

ASTBURY: Okay. So you explained about how the long line can be in the wrong position and that can cause problems. So that was your concern with the long line; is that correct?

STONIER: Yes.

ASTBURY: Okay. What are the -- what were your concerns about the fluids that had been administered and could cause a collapse?

STONIER: So I didn't have a concern specifically about the fluid, but when thinking of what could have caused it my concern was maybe the bag of fluid wasn't what we thought it was potentially.

ASTBURY: Okay.

And then the other officer:

"What did you think it was?"

STONIER: 10% glucose.

ASTBURY: Did you say that Melanie attached it or you just don't recall who attached it?

STONIER: I believe Mel was sterile so I think Mel would have attached it if she was sterile.

ASTBURY: Okay.

STONIER: She would have been the one to have connected it.

I can't remember for definite who connected the bag, no.

ASTBURY: Where does the bag come from?

STONIER: So the bags are all pre-sealed and they're in a cupboard in nursery 1.

ASTBURY: So who actually retrieves those out of the cupboard?

STONIER: The nursing staff.

ASTBURY: Okay so did you retrieve that bag for [Baby A]?

STONIER: No, not that I recall. I recall that Mel already had the bag out --

ASTBURY: Okay.

STONIER: -- and was -- and already had the line ready to run through, so we checked the bag together.

ASTBURY: Okay. As part of your checks of the -- his equipment did you recheck his bag and the long line after Mel had attached it?

STONIER: I can't recall specifically.

ASTBURY: Would there be any record made of who attached this bag?

STONIER: So usually when we sign the drug chart, the signature that signed for first is usually the person that connected and the signature below is the co-signer.

ASTBURY: For the next part of the interview the officer returned to the notes and as a result of which asked this:

"You then go on to say that:

"The hand and footprints were taken with consent along with a lock of hair. Hand and footprints of sibling also obtained as per parents' wishes. Parents and maternal and paternal grandparents have had time alone cuddling [Baby A]. [Baby A] has also spent time on CLS with parents on cold cot. Photos taken with unit camera and parents' phones."

My Lord, I don't need to go to it now but the reference for that note is tile 222: Do you remember who did those activities?

STONIER: I believe I did. The footprints, I remember doing those for [Baby B].

ASTBURY: Can you go through the process of how you would do that then?

STONIER: We have a set, a kit on the unit, that has a set of paper and wipes that we wipe the foot with and then imprint that on to a piece of card and that's usually done with two people. We do it with the hand and the feet.

ASTBURY: Okay. Obviously a very difficult -- [Baby A]'s passed away and you're doing that. How does it make you feel doing that process?

STONIER: I personally find that process quite -- it's quite nice to do something nice for the baby and with the baby and I see it as a way of giving parents memories.

ASTBURY: Okay. Where did they take place? Where do you actually do this?

STONIER: I can't remember specifically where we do it but you can either do it in the incubator or after the baby's passed away and it's on the cold cot, we can do it in there.

We can do it when they're sat on the mum and dad.

We can do it wherever, really. I don't recall specifically where I did [Baby A]'s.

ASTBURY: And is -- who is present when this occurred?

STONIER: Anybody can be present. So if -- the parents can be there. We usually do it with two members of staff for the practicality of having somebody to assist you with the paper and the wipes, so it's usually two members of staff do it.

ASTBURY: And what -- the documentation that you refer to in those notes -- what is that documentation?

STONIER: So we have a bereavement checklist that we have to go through when a baby dies. So we tick things that we've done, such as hand and footprints, if photographs have been taken, is the baby labelled, do parents -- aware of things like that, and that's passed over then to the staff taking over and they continue that sheet.

ASTBURY: Okay.

Lucy Letby was then asked about a reference to [Baby A]'s parents in her notes.

The question was posed: Is there a reason why you refer to them as mummy and daddy? Can you see that within those notes?

STONIER: Because they are their mum and dad.

ASTBURY: Obviously, some people call them by their names or parents of. But the reason why you --

STONIER: No, usually we would refer to them as mum and dad or parents. We don't usually name them by their Christian names.

ASTBURY: Okay. Then you put mementos gathered and placed in a memory box. Why was this done?

STONIER: That's what we'd do for any baby that's passed away.

We have a set bereavement box with various mementos in it and that's when we would put things like the hand and footprints and items from their cots, such as their cot card, their name bands.

ASTBURY: What about the family? Did you ever keep in touch with the family after [Baby A] died?

STONIER: Only whilst [Baby B] was still a patient on the unit.

ASTBURY: Did you make any other notes through the course of caring for [Baby A], did you make any other notes before you placed those on to the system?

STONIER: I don't recall specifically with [Baby A], but quite often we have a handover sheet where we write down information about the baby and if he was having a resus event or anything like that, you might make notes on the back of your handover sheet to use at the end of the day to help with writing your notes.

ASTBURY: Okay. You know the notes that you do make, handwritten notes that you make, like you say, for the purpose of handover, what happens to those at the end of the shift?

STONIER: They're usually disposed then in confidential waste.

ASTBURY: Right, okay. What do you do with yours? What did you do with [Baby A]'s in particular?

STONIER: I don't recall.

ASTBURY: A discussion then took place regarding shift rotas at the time. A file, we are told, was kept on the unit with shifts planned around a month in advance. Any swaps with other members of staff or overtime would be handwritten on the paper forms. And there was no electronic system for clocking on and off. Then Lucy Letby was asked: How do you actually get on to the unit?

STONIER: It's swipe access --

ASTBURY: Right.

STONIER: -- to gain entry to the unit.

ASTBURY: Okay, and are there any particular times where you would work more overtime or times when you wouldn't want to, you know, do you have set holidays throughout the year?

STONIER: No.

ASTBURY: Okay. You don't get a call like last minute, 'We're short of staff'?

STONIER: Yeah.

ASTBURY: You do?

STONIER: Yes.

ASTBURY: How often was that?

STONIER: Quite frequently on sort of a week-to-week basis, I would say.

ASTBURY: So what sort of notice would you be given for the overtime?

STONIER: I mean, sometimes they would call you in the morning and say, "Could you work tonight?" or ring you today and say, "Would you be able to work tomorrow?"

ASTBURY: Do you remember anybody else giving [Baby A] care in between the time that you had the handover and the point of his collapse? I think you said about 8.20.

STONIER: No.

ASTBURY: Okay. Obviously, having -- obviously, you've had his notes. Having read his notes, do you think there was anything that you need to raise for us to have a look at during this interview now with regards to [Baby A] that you feel we need to discuss?

STONIER: No.

ASTBURY: Then Ms Letby's solicitor spoke: The thing is in relation to [Baby A], I think you've only had less 20 minutes contact with him in total, is that --

STONIER: Yes.

ASTBURY: And then reverting to the officer: Yeah, including his parents. Ever?

STONIER: Yes, that was the first time.

ASTBURY: From the time of coming on duty to the time --

STONIER: That was the first time I've met [Baby A], yes.

ASTBURY: So within the 20 minutes that you had, he's gone downhill, he became pale, you saw this mottled effect on the feet, apnoeic, stopped breathing, collapsed, and then obviously a full resuscitation attempt was made.

Is that a fair sort of summary of what happened with [Baby A]?

STONIER: Yes.

ASTBURY: Is there anything else you would like to tell us about [Baby A] and your care for [Baby A] that can help us with this investigation?

STONIER: No. So the only concern that I had was there was an issue potentially with the line or the fluid that we'd attached.

ASTBURY: Okay. And again, we've spoken about the line: the potential problem there was that it was wrongly located and that whatever was put through the line would seep out of the bloodstream?

STONIER: Yes.

ASTBURY: Yeah, and the other potential problem there is the bag and whether it contained the correct prescription?

STONIER: Yes.

ASTBURY: And the interview in respect of [Baby A] was concluded at that point.

STONIER: Yes, that's correct.

MR ASTBURY: Thank you. I'll just make this point, my Lord, if I may. Often, an interview would carry on to another baby, it wouldn't necessarily stop and then start another interview.

STONIER: Yes, that's right.

MR JUSTICE GOSS: Yes, but as has been done throughout this case, it's all been compartmentalised, so the interviews will be specific to the individual babies.

MR ASTBURY: Yes. Is that an appropriate point?

MR JUSTICE GOSS: Yes.

That gives you an idea of what's to come and another file of this. All right? These are your paper copies, your working documents for such use as you wish to put them during the course of the trial. We will now break

off because there's no point in starting another interview and we will resume on Wednesday because tomorrow is a day off.

Friday is a day off. Monday the 24th is a day off and Wednesday the 26th is a day off so far as April is concerned. I will give you the full list on Wednesday in relation to it, but as far as this week is concerned, as you know, not sitting tomorrow, so it's Wednesday and Thursday of this week that you're required.

Next week, you're required Tuesday, Thursday and Friday. All right? You should have that in a sheet of paper that you had from earlier, before the Easter break. Thank you very much.

Please remember your solemn responsibilities as jurors in this case: no communication by any means with anyone, no research about anything to do with this case.

(In the absence of the jury)

MR JUSTICE GOSS: I'll give you each a copy of the non-sitting days as known at present, which does include one week before the bank holiday at the end of May, where the court will not be sitting 3 days and we're going to have to make a decision about that week.

You'll see we've already got seven non-sitting days in May. So I'm not saying anything further at this stage, but we're just going to have to consider what's going to be done. That's why I didn't go beyond April with them.

Ms Letby is being brought tomorrow, is she?

MR MYERS: Yes, we understand she is, and we're grateful for that. We'd be grateful just for the opportunity for a brief visit at the end of today, at the conclusion today.

MR JUSTICE GOSS: I can see the officer is nodding.

Thank you very much indeed.

(4.12 pm)

(The court adjourned until 10.30 am on Wednesday, 19 April 2023)